



**Audi (China)
Enterprise Management Co., Ltd.**

奥迪 (中国) 企业管理有限公司

Labor Contract

劳 动 合 同





THIS LABOR CONTRACT is made on 16.05.2022.

本**劳动合同**由以下双方于2022年05月16日签订。

The Company: Audi (China) Enterprise Management Co., Ltd.

甲方（用人单位）：奥迪（中国）企业管理有限公司

Legal Representative: Dr. Jürgen Unser

法定代表人: 温泽岳

Legal Address: 3-6/F, Building B6 (Designer Building), within Zhengdong Group Courtyard, No. 4 Jiu Xian Qiao Road, Chaoyang District, Beijing, P.R. China

注册地址: 北京市朝阳区酒仙桥路4号正东集团院内B6楼（设计师大楼）3-6层

AND 以及

The Employee: Li Jiajun

乙方（员工）：李嘉俊

ID/Passport Number: 310103198312085079

身份证/护照号码: 310103198312085079

Residential Address:

家庭住址:

(The above is individually referred to as a "**party**" and collectively referred to as the "**parties**")

（甲方和乙方以下单独称为“**一方**”，合称为“**双方**”）

In accordance with the Labor Law of the People's Republic of China ("**PRC**" or "**China**"), the Labor Contract Law of the People's Republic of China and other relevant laws and regulations, the parties hereby agree to establish employment relationship and enter into this Labor Contract (the "**Contract**") as follows:

根据《中华人民共和国劳动法》、《中华人民共和国劳动合同法》及其他相关法律法规，甲乙双方同意建立劳动关系并订立劳动合同（“**本合同**”）如下：



Article 1 Term of Contract
合同期限

1.1 The parties agree to choose the following Article 1.1.2 as the regulation on term of this Contract:

双方同意，本合同期限应采下述 1.1.2 条之规定：

1.1.1 [FOR LC/HMT LC open-ended] This Contract is an open-ended labor contract, commencing on _____.

本合同为无固定期限的劳动合同，自_____年____月____日起生效。

1.1.2 [FOR LC/HMT LC fixed term] The Contract is a 3 year fixed term labor contract, commencing on 16.05.2022 and ending on 15.05.2025.

本合同为3年固定期限的劳动合同，自2022年05月16日至2025年05月15日有效。

1.1.3 [FOR LHF] The term of this Contract is five () years, from ____ to _____. The Company intends to develop a long-lasting relationship with the Employee and hereby agrees to renew the Contract as long as it is permitted by PRC laws and regulations and consistent with the general provisions of the Contract.

本合同为五（ ）年固定期限的劳动合同，有效期自_____年_____月_____日至_____年_____月_____日。甲方愿意同乙方建立长期劳动关系，同意在中国法律法规允许的条件下，根据本合同的相关规定，与乙方续签本合同。

1.2 The probation period of the Employee is 6 months, from 16.05.2022 to 15.11.2022 (this Article shall not apply if not filled).

乙方在甲方的试用期为6个月，自2022年05月16日至2022年11月15日（本条款若未填写则视为不适用）。

Article 2 Job Description and Evaluation
工作内容及考核

2.1 The Company shall employ the Employee and the Employee shall dutifully and faithfully serve the Company as Supply Chain Planner in C/P5



department. The Employee's personal grade is 19/20. The Employee will be based in Beijing.

甲方同意聘任乙方、乙方接受聘任，并应在 C/P5 部门的供应链规划员职位上尽职尽责地、忠诚地为甲方服务。乙方的个人级别为 19/20 级。乙方的工作地点为北京。

- 2.2 The Employee agrees that his/her position and duties may be adjusted according to the Company's business or operation situations and/or the Employee's performance. In the event of the adjustment of the Employee's position, his/her remuneration may be adjusted accordingly.

乙方同意，根据甲方的业务或经营需要和/或乙方的表现，甲方可调整乙方的职位和职责。若乙方的职位发生调整，乙方的劳动报酬水平可以进行相应调整。

- 2.3 During the term of this Contract, the Employee shall timely perform and complete his/her duties and responsibilities and meet all requirements on quality and quantity of the work in accordance with the Job Description and the employee handbook of the Company, which may be amended by the Company from time to time (the "**Employee Handbook**").

在本合同期限内，乙方应根据甲方制定并随时更新的《员工手册》（“《员工手册》”）和岗位职责说明按时、保质、保量地完成本职工作。

- 2.4 The Employee shall accept the evaluation and audit carried out by the Company at any time in connection with the performance of his/her duties. In case the Employee fails to reach the duty requirements set out by the Company and has failed to improve it after receiving notice from the Company, the Company shall be entitled to re-arrange the Employee's position and responsibilities.

乙方应随时接受甲方对其工作业绩的考核和审计。若乙方没有达到甲方对该项工作的要求并在得到甲方通知后仍无改进，甲方有权在合理范围内重新安排乙方的工作和岗位。

- 2.5 The Company may, in accordance with the its operation or business needs, reassign the Employee to another branch office or liaison office of the Company, or temporarily second the Employee to other locations or other affiliated entities.

甲方可根据经营或业务需要，重新指派乙方在甲方的另一分公司或联络处工作，或临时借调乙方到其他地点或关联企业工作。



- 2.6 The Employee is encouraged to have a personal career development in the Company. For evaluating a promotion to management level and above, the Company may give priority to the Employee if he/she has been assigned by the Company to any other locations where the Company has subsidiaries, joint ventures or other affiliated entities of the Company. This also applies to the Employee who is or was on a global assignment to subsidiaries or joint ventures of the Volkswagen Group.

公司鼓励员工的个人职业发展。在评估员工晋升至经理级别及以上（含）岗位的晋升机会时，公司可优先考虑已有被公司指派到其子公司、合资公司或其他关联企业所在地工作经验的员工。本条规定同样适用于已经历或正处于全球派遣而被指派到大众汽车集团旗下子公司或合资公司工作的员工。

Article 3 Working Hours and Leaves

工作时间及假期

- 3.1 The parties agree to choose the following Article 3.1.1 as the regulation on working time:

双方同意，乙方工作时间应采下述 3.1.1 条之规定：

- 3.1.1 [FOR TARRIF and MK] The Employee shall work based on standard working time, which is five (5) days per week, eight (8) hours per day, but can be adjusted by the Company based on its business and management needs.

甲方实行标准工时制度，即每周工作五（5）天，每天工作八（8）小时，但可根据公司经营管理需要由公司决定调整。

- 3.1.2 [FOR OMK and above] The Employee shall work based on flexible working time. No weekday or weekend overtime will be recognized under the flexible working time system and public holiday overtime will be handled by the Company according to applicable laws and regulations.

乙方适用不定时工时制度。在此工时制下，工作日工作时间延长及周末工作不视为加班，法定节假日加班将由甲方根据法律法规的规定处理。

- 3.2 The Company may adjust the Employee's working hours and arrange overtime work according to its business needs. Overtime payment, if any,



is paid to the Employee in accordance with the relevant laws, regulations and the Employee Handbook.

甲方可根据公司业务的需要调整乙方工作的时间及安排乙方加班，并按照有关法律法规和《员工手册》的规定给予乙方补偿。

- 3.3 If the Employee applies for any alternative working hours, he/she is responsible for providing all necessary assistance for and fully cooperating with the Company in its application.

如乙方向甲方申请实行其他工时制度，乙方应就该项申请提供所需任何协助并予以充分合作。

- 3.4 The Employee is entitled to enjoy all PRC statutory public holidays and various company holidays as set out in the Employee Handbook. The leave policy shall be implemented in accordance with the Employee Handbook.

乙方有权享受中国法律法规规定的公共假期和公司《员工手册》规定的各种假期。具体休假办法按《员工手册》中的规定执行。

- 3.5 To avoid any doubt, the Employee's entitled annual leave under this Contract (including the statutory annual leave and supplementary annual leave) can be referred to the Appendix: Annual Leave and Additional Benefits.

为避免任何疑义，乙方根据本合同享有的年假天数（包括法定年假和额外年假）详见本合同附件：年假及补充福利说明。

Article 4 Remuneration

劳动报酬

- 4.1 The Employee's applicable base salary at effective date of this Labor Contract will be RMB **34500** gross per month.

乙方于本劳动合同生效日适用的月基本工资为税前人民币 34500 元。

- 4.2 The Employee is legally responsible for his/her tax payments. It is the Employee's responsibility to file the appropriate tax declaration as legally required. To assist the Employee in complying with his/her tax obligations, the Company will make appropriate withholding from his/her gross salary and make tax payments to the tax authority on his/her behalf.



缴纳税款是乙方的法律义务。乙方应按国家法律法规的规定就其劳动报酬申报个人所得税。为协助乙方履行纳税义务，甲方承担代扣代缴乙方个人所得税的义务。

- 4.3 The Employee's after-tax monthly salary is payable into a bank account nominated by the Employee no later than the last working day of each calendar month.

甲方应不迟于每月的最后一个工作日将乙方税后工资汇入乙方的银行账户。

- 4.4 The Company shall conduct an annual appraisal on the Employee's performance. The Company can review the Employee's salary annually in accordance with the Employee Handbook (the "**Merit Increase**"). To avoid any doubt, the Company does not guarantee the annual Merit Increase.

甲方每年对员工进行绩效评估。甲方可根据《员工手册》的规定每年对乙方工资进行所需的调整（“薪资调整”）。为避免任何疑义，公司不保证每年必然进行薪资调整。

- 4.5 If defined as Tariff Employee under the Employee Handbook, the Employee is entitled to a 13th Month Salary which equals to one month base salary for one full year of service, payable in the first quarter of the immediate following year. If the Employee joins the Company within the course of a calendar year, he/she will be entitled to this 13th Month Salary on a pro-rata basis per completed days of employment in the calendar year. However, if the Labor Contract of the Employee is terminated during the probation period regardless of the reason, the Employee is not entitled to the 13th Month Salary.

若乙方为《员工手册》规定的员工级别雇员，则乙方为甲方每连续工作满一年，有权享有相当于一个月基本工资的第十三薪，在下一年度的第一季度支付。如乙方在一个日历年中加入或离开公司，则第十三薪按乙方在该日历年度的实际在职天数按比例折算。作为例外，劳动合同因任何原因在试用期内解除的，乙方不享有第十三薪。

- 4.6 The parties agree to choose the following Article 4.6.1 as the regulation on bonus:

双方同意，乙方奖金应采下述 4.6.1 条之规定：



4.6.1 [FOR TARRIF] The Employee will also be eligible to be considered for a discretionary bonus including the individual performance driver and the company performance driver (collectively “**Bonus**”), dependent on individual performance and the performance of the Company. The Company has the sole discretion to decide whether to pay the Bonus and the amount of the Bonus. For the avoidance of any doubt, in order to receive the Bonus, a condition precedent is that the Employee must be employed with the Company at the time of payment. For the Bonus, the employee dialogue results (confirmed in Comparative Appraisal Panel (CAP) are also all obligatorily required. The employees whose employee dialogue results are III will not be entitled to any Bonus.

根据乙方个人绩效及甲方公司绩效，甲方可考虑向乙方发放浮动的包括个人业绩考量因素和公司业绩考量因素在内的奖金（“**奖金**”）。甲方有权单独决定是否向乙方发放奖金以及奖金的金额。为避免任何疑义，乙方能够享有奖金的前提条件是：在甲方支付奖金时，乙方仍受雇于甲方。员工绩效面谈结果（经绩效讨论会议确认）也是获得奖金的必要条件。当年绩效面谈结果为 III 的员工将无权获得任何奖金。

4.6.2 [FOR MK and above] The Employee will be considered based on management bonus systems of the Company. The Company shall have the right to make its discretionary decision on entitlement and amount of bonus payment. For the avoidance of any doubt, in order to receive the bonus payment, a condition precedent is that the Employee must be employed with the Company at the time of payment. For the management bonus, the management dialogue results (confirmed in Comparative Appraisal Panel (CAP) are also all obligatorily required. The employees whose management dialogue results are III will not be entitled to any management bonus.

乙方适用管理级别奖金制度，甲方有权单独决定是否向乙方发放奖金以及奖金的金额。为避免任何疑义，乙方能够享有奖金的前提条件是：在甲方支付奖金时，乙方仍受雇于甲方。乙方绩效面谈结果（经绩效讨论会议确认）也是获得奖金的必要条件。当年绩效面谈结果为 III 的员工将无权获得任何奖金。



- 4.7 Tariff Employee who receives “consistently meets” (included) or above grade in probation evaluation or who receives “occasionally not meet” but the Company decides to allow him/her to pass probation period with conditions is entitled to a probation success award (“PSA”) in accordance with the Employee Handbook as well as the Company regulations and policies after he/she fulfills the requirements and conditions of the Company and passes probation evaluation. PSA is a discretionary and variable payment, which is under the discretion of the Company. In order to receive the PSA, a condition precedent is that the Employee must be employed with the Company at the time of payment.

若乙方为员工级别雇员，试用期考核结果为“始终符合”或更高级别，或试用期考核结果为“有时无法符合要求”但公司同意其有条件通过试用期的，则在其满足公司试用期要求并通过试用期后可根据《员工手册》及公司规章制度及政策规定获得试用认可奖。试用认可奖是可变收入，由公司自主决定。员工获得试用认可奖的前提条件之一是员工在支付日仍受雇于公司。

Article 5 Social Insurance and Benefits

社会保险及福利

- 5.1 The parties agree to choose the following Article 5.1.1 as the regulation on social insurance:

双方同意，乙方社会保险应采下述 5.1.1 条之规定：

- 5.1.1 [FOR LC] The Company will be responsible for mandatory social benefits (including pension, unemployment, medical and maternity, work-related injury insurances and accumulated housing funds) for the Employee during the period of his/her employment.

在本合同期限内，甲方应根据相关法律法规规定为乙方办理社会保险（包括养老、失业、基本医疗和生育、工伤保险）并缴纳住房公积金。

- 5.1.2 [FOR LHF] According to PRC laws and regulations, a foreign national lawfully employed by the Company shall participate in social insurance system in China (including pension, unemployment, medical and maternity, work-related injury insurances) during his/her employment on a monthly basis. The Company will be required to pay social insurance to relevant governmental social security authorities and the Employee shall



make his/her personal contribution in accordance with laws and regulations then in effect. The Company will deduct such personal contribution from the Employee's gross base salary on monthly basis, which will then be paid to relevant governmental social security authorities in China, together with the social insurance required to be paid by the Company for the Employee.

根据中国法律法规，接受甲方聘任的外国人应参加社会保险（包括养老、失业、基本医疗和生育、工伤保险）并于受聘期间按月缴纳相关费用。甲方应根据相关法律法规向社保主管机构缴纳用人单位相关费用，乙方亦应根据所适用的法律法规进行个人部分缴费。甲方承担代扣代缴义务，按月自乙方月基本工资总额中扣除该等个人部分，并将该部分及用人单位缴费部分一并缴纳至社保主管机构。

5.1.3 [FOR HMT LC] According to PRC laws and regulations, the Chinese citizens among Hong Kong and Macao residents as well as Taiwan residents lawfully employed by the Company shall participate in social insurance system in China during their employment on a monthly basis. The Company will be required to pay social insurance to relevant governmental social security authorities and the Employee shall make his/her personal contribution to China social insurance and welfare in accordance with laws and regulations then in effect. The Company will deduct such personal contribution from the Employee's gross base salary on monthly basis, which will then be paid to relevant governmental social security authorities in China, together with the social insurance required to be paid by the Company for the Employee.

根据中国法律法规，接受甲方聘任的香港特别行政区、澳门特别行政区居民中的中国公民和台湾地区居民应参加社会保险并于受聘期间按月缴纳相关费用。甲方应根据相关法律法规向社保主管机构缴纳用人单位相关费用，乙方亦应根据所适用的法律法规进行个人部分缴费。甲方承担代扣代缴义务，按月自乙方月基本工资总额中扣除该等个人部分，并将该部分及用人单位缴费部分一并缴纳至社保主管机构。

5.2 The Employee shall be entitled to enjoy relevant welfare treatments in accordance with the Employee Handbook.

乙方有权按甲方《员工手册》享受其中规定的各项福利待遇。



To avoid any doubt, the Employee is not entitled to enjoy Merit Increase, individual performance driver part of the Bonus (applies to Tariff Employees), Enterprise Annuity Plan, driving school fee and staff car purchasing program as well as other benefits that may be so provided in the Employee Handbook as well as the Company regulations and policies until he/she successfully completes his/her probation period.

为避免任何疑义，乙方在试用期内不享有薪资调整、个人业绩考量因素部分的奖金（适用于员工级别雇员）、企业年金计划、驾校费用及员工购车计划等根据《员工手册》及公司规章制度及政策规定在试用期不适用的福利待遇。

- 5.3 Based on its sole business discretion and operation situations, the Company may decide to provide additional benefits during the period of employment of the Employee. The prerequisite for entitlement of such additional benefits is that the Employee adheres to the provisions of this Contract and the Company regulations and policies on the specific benefit which may be amended from time to time. The details of the additional benefits (if applicable) are attached in Appendix: Annual Leave and Additional Benefits.

甲方可以根据其业务和经营需要，于乙方受聘期间向乙方提供补充福利。乙方获得甲方提供的补充福利的前提为其同意遵守本合同之规定以及甲方制定并不时修订的相关规章制度及政策。甲方提供的补充福利（如适用）详见本合同附件：年假及补充福利说明。

- 5.4 The social insurance and benefits under this Article 5 are based on the personal and family status of the Employee. To ensure the Employee and his/her family to enjoy relevant social insurance and benefits, the Employee agrees to provide the Company with related information and documentation of himself/herself as well as his/her family members in accordance with the requirement of the Company, and inform the Company of and provide the Company with any changes to the information/documentation timely.

鉴于本第 5 条项下的相关社会保险及福利待遇系基于乙方个人和/或其家庭情况制定，为确保乙方及其家庭成员享受该等社会保险及福利待遇，乙方同意及时根据甲方要求向甲方提供其及其家庭成员的相关信息和文件，并在该等信息/文件发生变化时及时告知或提交给甲方。



The Company has the right to reclaim and/or deduct directly from other money payable to the Employee the overpayment of abovementioned benefits incurred due to any inaccurate information provided by the Employee or changes in his/her personal or family status.

因乙方个人和/或其家庭情况变更和/或信息不准确而造成甲方超额支付的福利款项，甲方有权利向乙方主张返还，或从应付乙方的其他款项中直接抵扣。

Article 6 Working Protection and Conditions

劳动保护及劳动条件

- 6.1 The Company shall provide the Employee with necessary working conditions, working tools and working protection facilities in accordance with the relevant PRC laws and regulations and the Company's regulations and policies.

甲方应根据中国有关法律法规以及甲方规章制度及政策为乙方提供必要的工作条件、劳动工具、劳动保护设施和劳保用品。

- 6.2 The Employee shall strictly comply with the safety rules and requirements at work. In accordance with the actual circumstances of the Employee's position, the Company shall arrange health examinations for the Employee on a regular basis as required by law, or otherwise as necessary; the Employee must go through a physical examination pursuant to the Company's instructions and any refusal to cooperate in such physical examination will be deemed to be a serious violation of the Working Discipline (defined as below).

乙方在工作中必须严格遵守安全操作规程。甲方将根据乙方岗位的实际情况，依法定期或在必要时安排乙方进行身体健康检查，乙方须根据甲方的指示进行体检，如拒绝配合进行体检，将被视为严重违反甲方劳动纪律。

- 6.3 The Company shall provide the Employee with necessary information on professional ethics, work skills and techniques, safety operation knowledge and other Company regulations.

甲方负责告知乙方有关职业道德、业务技术、劳动安全以及甲方规章制度等事宜。

Article 7 Working Discipline

劳动纪律



- 7.1 The Employee agrees to comply with the PRC laws and regulations and all regulations and policies of the Company (including without limitation the Company's Employee Handbook and other regulations and policies applicable from time to time) (the "**Working Discipline**").

乙方应严格遵守中国相关法律法规和甲方的所有规章制度及政策（包括甲方《员工手册》及其他现有的及日后不时规定或修订的规章制度及政策）（“劳动纪律”）。

- 7.2 The Employee acknowledges and agrees that the Company may announce its regulations and policies through various methods (including without limitation the Company's intranet, work email announcement or notice board). The Employee agrees and warrants that he/she shall read carefully and understand thoroughly all regulations and policies of the Company, and he/she shall keep updated of and adhere to all of the Company's current regulations and policies as well as all the new or updated regulations and policies issued by the Company. The Employee undertakes all the activities of him/her shall be in compliance with relevant laws and regulations as well as the company regulations and policies of the Company. The Employee shall adhere to reasonable instructions and decisions of the Company, perform his/her duties diligently and loyally, take care of the property and reputation of the Company, and abide by the occupational moral and professional ethics.

乙方知悉并同意，甲方可以通过多种渠道（包括但不限于通过甲方内部互联网、电子邮件公告、公告栏）不时发布和更新内部规章制度。乙方同意并保证，其将认真阅读、充分理解、及时更新并严格遵守甲方现有的所有规章制度以及甲方未来不时规定或修订的所有规章制度。乙方有义务保证其所有的行为均符合中国法律规定和公司的内部规章制度。乙方应当服从甲方合理的指示和决定，勤奋、忠实地履行职责，爱护甲方的财产，维护甲方的声誉，遵守职业道德。

- 7.3 The Employee acknowledges and confirms that Volkswagen Group Code of Conduct (the "**CoC**") sets forth the essential basic principles of the activities of the Company and forms the basis for the actions within the Volkswagen Group. As an employee of the Company and Volkswagen Group, the Employee shall strictly observe the CoC (in its respective versions), act by ethical values and behave with integrity, and treat all



employees as well as customers and business partners with fairness. Violation of the CoC may result in employee disciplinary action.

乙方确认并知悉,《大众汽车集团行为准则》规定了甲方业务活动必不可少的基本原则,是甲方集团内行为规范的基础。作为甲方集团员工,乙方应严格遵守《大众汽车集团行为准则》(包括其不时更新的版本),以诚信和道德价值观为行为导向,公平地对待所有员工、客户和业务合作伙伴。违反《大众汽车集团行为准则》的行为将导致纪律处分。

- 7.4 The Employee shall, at the request of the Company, fill in and sign the documents in relation to conflict of interest, confidentiality, non-competition, etc. and perform his/her obligations under such documents accordingly.

乙方应按照甲方的要求在有关利益冲突、保密、竞业限制等文件上如实填报、签字并承担相应义务。

- 7.5 Without written consent of the Company, the Employee shall not accept any visit from media nor publish any articles in connection with the Company or the Company's business, or donate or take part in any social activity in the Company name without Company's authorization.

未经甲方的书面许可,乙方不得就任何与甲方或甲方业务有关的事项接受任何媒体的采访或发表文章。未经甲方授权,乙方不得以甲方名义参加任何社会活动或做出捐款。

- 7.6 The Employee understands, authorizes and agrees that for the purposes of the personnel and operation management, the Company can collect his HR related data and provide such data to its affiliated entities as well as the third parties employed by the Company or its affiliated entities according to the Company's business and operation situations. The Employee acknowledges, authorizes and agrees to provide the Company and its affiliated entities as well as the third parties with HR related data and confirms such data are accurate and authentic. The Employee also acknowledges, authorizes and agrees the Company and its affiliated entities as well as the third parties shall handle and use such data for the purpose as stipulated in this Article 7.6.

乙方知悉、授权并同意,出于对员工进行相关人事和经营管理目的,甲方有权收集与乙方个人相关的人事资料,并根据业务或经营需要向甲方关联方提供。

甲方亦可能基于前述目的,将该等资料提供给由甲方或其关联方聘请的其他第



三方。乙方知悉、授权并同意向甲方、甲方关联方及其他相关第三方提供该等资料，并确认提供的所有资料是准确的，符合其真实情况。同时，乙方知悉、授权并同意甲方、甲方关联方及其他相关第三方根据本 7.6 条所述之目的处理和使用该等资料。

- 7.7 The Company's telephone, voice mail, work computer, work email system and other equipment and systems as well as the data stored therein shall be and remaining as the sole property of the Company. All data information created, sent, transmitted, stored, searched, or restored through the equipment, systems or technical sources of the Company, including the email information and document, shall be the property of the Company and shall not be deemed as private or confidential property of any individual, except for the Employee's personal data. The Employee agrees that the Company is entitled to search, restore and investigate the foregoing data and information at any time and the Company reserves the right to monitor the Employee's use of its equipment, systems and technical sources at any time. The Employee further agrees to grant the Company his/her consent of accessing and processing his/her personal data in the Company's telephone, voice mail, work computer, work email system and other equipment and systems during and for the purpose of such search, restoration and investigation to the extent permitted by applicable laws.

甲方的电话、语音邮件、电脑、电子邮件系统等设备和系统以及其中储存的数据应为并始终保持为甲方的财产。除乙方个人信息外，通过甲方的设备、系统或技术资源创造、发送、传输、存储、检索或恢复的所有资料，包括电子邮件信息和文档，均应为甲方的财产，且不得视为是任何个人的私人或保密财产。乙方同意，甲方有权对前述数据和资料随时进行检索、恢复和审查，且甲方保留在任何时候对乙方使用其设备、系统或技术资源进行监控的权利。乙方进一步同意，在法律允许范围之内，在该等检索、恢复和审查的过程中且为该等检索、恢复和审查的目的，乙方授权甲方同意以访问和处理乙方在甲方的电话、语音邮件、电脑、电子邮件系统等设备和系统中的个人信息。

Article 8 Confidentiality

保密条款

- 8.1 The Employee shall not directly or indirectly disclose the information made available to him/her during his/her work, which in the sole



discretion of the Company is confidential, including but not limited to know-how, technology, products, business, administration and financial information or documents of the Company, the Company's subsidiaries and parent company and any affiliated entities of the Company and its parent company, to any third party or any other company, entity or individual or any other personnel of the Company except that such personnel need to obtain such information for the purpose of duly performing their duties.

在工作期间，乙方不得直接或间接地将接触到的甲方及其子公司、母公司、母公司的任何关联公司的机密信息透露给任何第三者、任何其它公司或甲方聘用的任何其它人员，除非甲方人员需要该信息来完成其本职工作。这些机密信息包括但不限于甲方的专门技能、技术、产品、业务、管理及财务信息和文件。

- 8.2 The Employee shall not use or permit other parties to use the confidential information for the purpose of competing with the Company or for purposes other than performance of the Employee's duties.

乙方不得利用或同意其它方使用机密信息与甲方竞争或为了达到与完成本职工作无关的其它目的。

- 8.3 The Employee agrees to return all property or documents of the Company before termination/ending of this Contract. This includes but is not limited to confidential or non-confidential drawings, memorandum, list of clients or financial documents and shall not keep copies thereof.

乙方应在此合同解除/终止前交还公司的物品及文件，这些物品及文件包括但不限于机密或非机密图表、备忘录、客户名单、财务报告等，并保证不保留其复印件或电子文本。

- 8.4 The Employee's non-disclosure or non-use obligations under this Article 8 shall remain valid after the termination/ending of this Contract.

乙方在此合同解除/终止后仍负有不透露或不使用本第 8 条中提到的机密信息的义务，否则乙方承担所有法律责任。

Article 9 Intellectual Property

知识产权

- 9.1 During the term of employment, the Employee agrees to make a full written disclosure to the Company of all intellectual property rights,



which the Employee discovers, makes, develops or improves, or assists in discovering, making, developing or improving, during the Employee's performance of his/her duties under this Contract or other duties assigned to the Employee by the Company, irrespective of whether they were so discovered, made, developed or improved during normal working hours or basically by using materials, resources or facilities of the Company such as capital, equipment, parts, raw materials and technical data, etc. (the **"Intellectual Property Rights"**). The Employee acknowledges and irrevocably agrees that all such Intellectual Property Rights shall be vested in the Company.

在受聘期间，乙方同意以书面方式向甲方全面披露乙方在履行本合同项下的职责或甲方委派乙方的其他职责过程中发现、做出、开发或改进或者协助发现、做出、开发或改进的全部知识产权，无论该等知识产权是否是在正常工作时间或基本运用甲方的材料、资源或设备（例如资金、设备、零部件、原材料及技术资料等）发现、做出、开发或改进（“知识产权”）。乙方承认并同意所有该等知识产权均归甲方所有。

- 9.2 The Employee agrees that he/she will undertake all actions necessary to protect the Intellectual Property Rights of the Company. The Employee shall do all things and give necessary support during and after the termination/ending of his/her employment and give necessary support after termination for obtaining appropriate forms of protection for such Intellectual Property Rights and for fully vesting such Intellectual Property Rights in the Company or its designee(s).

乙方同意，其将采取所有必要行动保护甲方的知识产权。在乙方的受聘期间以及雇佣解除/终止后，乙方应采取所有行动并给予必要的支持，以便以适当的形式保护该等知识产权并使该等知识产权完全归甲方或其指定方所有。

- 9.3 The term "Intellectual Property Rights" means any and all intangible rights or interests evidenced by or embodied in (i) any software, idea, design, concept, method, process, technique, apparatus, invention, discovery or improvement, including any patents, patent applications, trade secrets and know-how; (ii) any work of authorship, including but not limited to, any copyrights, industrial designs, mask works or moral rights; (iii) any trademarks, or any applications therefor, trade names, service marks, trade designations, and associated goodwill; (iv) any other proprietary technology or material in which similar rights exist by virtue



of or pursuant to any law in force in any part of the world; and (v) other rights, including Internet domain names, URLs and other identifying information.

“知识产权”指由以下各项证明或包含的任何和所有的无形权利或利益：(i) 任何软件、想法、设计、概念、方法、加工工艺、技术、仪器、发明、发现或改良，包括任何专利、专利申请、商业秘密和专有技术；(ii) 任何著作权作品，包括但不限于任何版权、工业设计、掩膜作品或精神权利；(iii) 任何商标或其申请、商号、服务标识、商业称号及有关信誉；(iv) 由于或根据世界上任何地方的任何有效法律而在其中存在相似权利的其他专有技术或材料；(v) 其他权利，包括互联网的域名，URL 和其他标识信息。

Article 10 Amendment and Termination

合同的修改、解除及终止

10.1 In case there is substantial change of the situation on which this Contract is based, the two parties may accordingly amend this Contract in writing. The Company may reasonably adjust the Employee's position and/or rearrange the Employee's working location within the various departments/divisions (including the Company's departments/divisions, branches or liaison offices) in accordance with the Employee's performance and/or the Company's business or operation situations.

若本合同签署时所依据的情况发生重大变化，双方可对此合同进行书面修改。甲方有权根据自身业务或经营需要和/或乙方的表现，于合理范围内在甲方的各个机构（包括部门、子公司、联络处）之间调整乙方的具体职位和实际工作地点。

10.2 The Company may terminate this Contract on any ground and in any circumstance allowed under the PRC laws and regulations, and shall provide prior notice or pay in lieu of notice to the Employee if required under the PRC laws and regulations.

甲方可出于法律法规允许的任何理由以及在法律法规允许的任何情形下解除本合同，并按照法律法规的要求提前通知乙方，或向乙方支付代通知金。

10.3 After the probation, the Employee is entitled to resign and consequently terminate the Labor Contract if a 30 day prior written notification of resignation is submitted to the Company in advance. The Employee is encouraged to discuss the resignation with the Company before making the final decision, so that a most-informed decision can be achieved by



the Employee. For the avoidance of doubt, this clause does not limit the Employee's right to immediately terminate the Labor Contract where the Employee is entitled to.

试用期后, 乙方有权提前 30 向甲方提出书面辞呈解除劳动合同。乙方应尽量在做出最终辞职决定前与甲方进行沟通, 从而做出慎重决定。为免疑问, 本条不限制乙方在法律允许的情形下立即单方解除本合同的权利。

- 10.4 The Company may terminate this Contract if the Employee suffers a non-work-related illness or injury and, at the end of his/her medical treatment period, cannot engage in his/her original work or in other suitable work arranged by the Company. During the medical treatment period, the Company has the right to hire another individual to fulfill the Employee's job duties.

如乙方非因工患病或负伤, 医疗期满后, 不能从事原工作, 也不能从事甲方安排的其他适当工作, 则甲方可解除本合同。在医疗期内, 甲方有权聘用他人履行乙方的工作职责。

- 10.5 The Company may terminate this Contract if the Employee is "incompetent", meaning that he/she (i) is unable to strictly fulfill his/her duties as set out in this Contract, in other agreements between the parties, or in the Working Discipline in accordance with the management's instructions, and/or (ii) is unable to fulfill his/her duties at the level generally expected of employees in a similar job position or entrusted to perform a similar type of work, and that he/she remains incompetent after undergoing the usual training for his/her assigned position or after assignment to another position (which needs not carry similar responsibilities and remuneration).

如乙方“不能胜任工作”, 指乙方 (i) 不能严格按照本合同规定、双方之间的其他协议、甲方管理层的指示或相关甲方政策中所规定的职责履行本合同, 和 / 或 (ii) 履行职责无法达到人们对处于类似工作岗位或受托从事类似工作的员工所普遍期望的水准, 并且对其进行正常的岗位培训或被重新分派至甲方另一现有岗位 (此岗位的职责和基本工资不必与原岗位相当) 后仍不能胜任工作的, 则甲方可解除本合同。

- 10.6 The Company may terminate this Contract if the Employee seriously violates the Working Discipline. Any material breach of this Contract shall be considered a serious violation of the Working Discipline.



如乙方严重违反甲方劳动纪律，甲方可解除本合同。对本合同的任何严重违约应被视为严重违反甲方的规章制度。

- 10.7 The Company may suspend the duties of the Employee when he/she is subject to an investigation of any disciplinary or legal matter.

乙方受到任何纪律调查或法律调查时，甲方可暂停乙方的职务。

- 10.8 The Company reserves the right to require the Employee not to attend work and/or not to undertake all or any of his/her duties of employment at any time during the term of employment.

甲方保留在受聘期间随时要求乙方不上班和/或不履行其一切或任何工作职责的权利。

- 10.9 The Employee agrees that the Company shall have the right to implement the disciplinary process against the misbehavior of the Employee incurred during his employment with the affiliated companies of the Volkswagen Group (as defined by the Company) or during his performance of service at the foregoing affiliated companies arranged by the Company based on its business purposes.

乙方同意，甲方有权就乙方受雇于大众汽车集团其他关联公司（范围根据甲方确认）期间或根据公司业务安排在该等实体提供服务期间的违纪行为进行处理。

Article 11 Indemnity and Compensation

违反劳动合同的责任

- 11.1 If the Employee causes any damage to the Company (including damage to the reputation, benefits and goodwill of the Company) or to any other personnel of the Company, the Company has the right to claim compensation from the Employee to cover such damage.

若乙方对甲方造成任何损失（包括对名誉、利益和信誉造成的损失）或对甲方的任何其他人员造成损失，甲方有权要求乙方进行赔偿。

- 11.2 In case the Employee attends professional technical training (including domestic or overseas training programs) funded by the Company, the Employee shall fulfill the service period required by the Company as stipulated in relevant Company regulations and/or training agreement.



In case the Employee resigns, abandons his/her position or is dismissed by the Company for cause within the agreed period, the Employee shall compensate the Company in accordance with the separate training agreement between the parties.

若甲方出资向乙方提供了专业技术培训（包括国内外培训项目），乙方应按照甲方有关规章制度和/或培训协议规定的服务年限为甲方服务。如乙方未满服务年限提出辞职、自行离职或被甲方因故解除本合同，须按双方另行订立的培训协议的约定赔偿甲方支出的有关培训费用。

Article 12 Governing Law and Dispute Resolution

适用法律和劳动争议处理

12.1 The validity, interpretation and implementation of this Contract shall be governed by PRC law.

本合同的效力、解释和执行应受中国法律的管辖。

12.2 Any disputes arising from this Contract shall be settled by two parties through friendly consultation. In case no settlement can be reached, either party may submit the dispute to the competent labor arbitration committee for labor arbitration.

因本合同的解释、履行、解除或终止或与本合同有关而发生任何争议时，双方应友好协商解决。若双方无法达成一致，任何一方有权向有管辖权的劳动争议仲裁委员会申请仲裁。

Article 13 Miscellaneous

其他

13.1 The Employee warrants to the Company that his/her execution and performance of this Contract will not violate any other contracts, agreements he/she has entered into or the PRC laws and regulations.

乙方向甲方保证签订及执行此合同不与其它任何与乙方有关的合同、协议或中国法律法规相抵触。

13.2 In case of any discrepancy between the Contract and the Working Discipline, the provisions hereof shall prevail.

如果本合同和劳动纪律有不一致之处，应以本合同的规定为准。



13.3 This Contract shall supersede all prior discussions and agreements relating to the subject matter of this Contract.

本合同将取代双方之间与本合同主题事宜有关的所有先前的讨论、磋商和约定。

13.4 The invalidity of any provision of this Contract shall not affect the validity of any other provision hereof.

本合同任何条款的无效不应影响本合同任何其他条款的效力。

13.5 This Contract shall be signed in both Chinese and English languages in two originals. Each party holds one original copy. For any inconsistency between the Chinese version and the English version, the English version shall prevail.

本合同以中、英文两种语言书就，一式两份，双方各持一份原件。如中、英文版本有不一致之处，以英文为准。

13.6 If the Employee is a foreign national, one of the precondition for this Contract coming into effect is that the Employee obtains the appropriate PRC work and residence permits. The Employee is responsible for providing the Company with all necessary information and documents for the Company to apply for the working permit for the Employee.

若乙方为外国人，本合同生效的前提之一为乙方在中国获得合法就业和居留证件。乙方应负责向甲方提供一切必要信息和资料，以便为乙方办理获取就业证相关手续。



The Company: Audi (China) Enterprise Management Company Limited

甲方：奥迪（中国）企业管理有限公司



Ren, Xiaopeng
Head of HR Business Partner

Lan, Fang
Senior HR Business Partner

The Employee: Li Jiajun

乙方：李嘉俊

Appendix: Annual Leave and Additional Benefits

附件：年假及补充福利说明